

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 904

Introduced by Arch, 14.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Nebraska Political Accountability and
- 2 Disclosure Act; to amend section 49-1401, Revised Statutes
- 3 Cumulative Supplement, 2024, and sections 49-1480 and 49-14,126,
- 4 Revised Statutes Supplement, 2025; to change provisions relating to
- 5 Chinese military companies; to harmonize provisions; and to repeal
- 6 the original sections.
- 7 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 49-1401, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 49-1401 Sections 49-1401 to 49-14,142 and section 4 of this act
4 shall be known and may be cited as the Nebraska Political Accountability
5 and Disclosure Act.

6 **Sec. 2.** Section 49-1480, Revised Statutes Supplement, 2025, is
7 amended to read:

8 49-1480 (1) Every person employed, retained, or authorized as a
9 lobbyist shall, before commencing any lobbying activity:

10 (a) File an application with the Clerk of the Legislature for
11 registration as a lobbyist, and if the clerk is satisfied that the
12 application has been properly prepared the registration shall be deemed
13 to be complete. The application shall be on a form prescribed by the
14 clerk and approved by the Executive Board of the Legislative Council, and
15 shall include as a minimum the following:

16 (i) The name, permanent residence address, and office address of the
17 lobbyist;

18 (ii) The name and address of the principal of such lobbyist;

19 (iii) The nature of the business of such principal and the amounts
20 or sums given or to be given the lobbyist as compensation or
21 reimbursement for lobbying. A lobbyist who is salaried or retained by a
22 principal need only report that portion of compensation or reimbursement
23 reasonably attributable to lobbying;

24 (iv) A description of the business activity of the lobbyist;

25 (v) An identification of the matters on which the principal or
26 lobbyist expects to lobby;

27 (vi) If the principal is a Chinese military company, an affirmative
28 acknowledgment by the lobbyist that such lobbyist is lobbying on behalf
29 of, and thereby acting as an agent of, a foreign adversary of the United
30 States;

31 (vii) If the principal is an industry, trade, or professional

1 association, a specific description of the industry, trade, or profession
2 represented by the principal and the names and addresses of its officers;
3 (viii) If the principal is not an industry, trade, or professional
4 association, a specific description of the interests and groups
5 represented by the principal and the names and addresses of its officers;
6 and

7 (ix) The name and address of any official in the legislative or
8 executive branch, and of any members of any such official's staff or
9 immediate family, who are employed by the lobbyist or any person acting
10 on behalf of such lobbyist if such information is known or reasonably
11 should have been known to the lobbyist.

12 (b) If any such lobbying activity is on behalf of a Chinese military
13 company, disclose that such Chinese military company is a foreign
14 adversary of the United States. For purposes of this subdivision (b),
15 lobbying activity includes, but is not limited to, lobbying by means of
16 telephone, electronic mail, United States mail or other mail delivery
17 service, in-person meetings, or testimony at legislative hearings.

18 ~~(2)(a) Every person employed, retained, or authorized as a~~
19 ~~consultant for a Chinese military company shall, before commencing any~~
20 ~~influencing activity in Nebraska for such Chinese military company:~~

21 ~~(i) File with the commission, on a form prescribed by the~~
22 ~~commission, information that shall include as a minimum, the following:~~

23 ~~(A) The name, permanent residence address, and office address of the~~
24 ~~consultant;~~

25 ~~(B) The name and address of the Chinese military company represented~~
26 ~~by such consultant;~~

27 ~~(C) A description of the business activity of the consultant;~~

28 ~~(D) An identification of the matters on which the consultant expects~~
29 ~~to conduct influencing activity on behalf of such Chinese military~~
30 ~~company;~~

31 ~~(E) An affirmative acknowledgment by the consultant that such~~

1 ~~consultant is influencing on behalf of, and thereby acting as an agent~~
2 ~~of, a foreign adversary of the United States; and~~

3 ~~(F) The name and address of any official in the legislative or~~
4 ~~executive branch, and of any members of any such official's staff or~~
5 ~~immediate family, who are employed by the consultant or any person acting~~
6 ~~on behalf of such consultant if such information is known or reasonably~~
7 ~~should have been known to the consultant; and~~

8 ~~(ii) Disclose that such Chinese military company is a foreign~~
9 ~~adversary of the United States.~~

10 ~~(b) For purposes of this subsection, influencing activity includes,~~
11 ~~but is not limited to, influencing by means of telephone, electronic~~
12 ~~mail, United States mail or other mail delivery service, or in-person~~
13 ~~meetings.~~

14 ~~(2) (3)~~ Any person who violates subdivision (1)(a)(vi) or (1)(b) ~~or~~
15 ~~subsection (2)~~ of this section shall be subject to a civil penalty of one
16 hundred thousand dollars for each violation. For any subsequent
17 violation, the civil penalty shall be increased by one hundred thousand
18 dollars more than the previously assessed penalty, not to exceed one
19 million dollars per violation. All penalties collected under this section
20 shall be remitted to the State Treasurer for distribution in accordance
21 with Article VII, section 5, of the Constitution of Nebraska.

22 ~~(3) (4)~~ For purposes of this section, Chinese military company has
23 the same meaning as in section 4 of this act 1260H ~~of Public Law 116-283,~~
24 ~~as such section existed on April 1, 2025, and includes any subsidiary of~~
25 ~~a Chinese military company or any company owned or controlled, in whole~~
26 ~~or in part, by a Chinese military company.~~

27 **Sec. 3.** Section 49-14,126, Revised Statutes Supplement, 2025, is
28 amended to read:

29 49-14,126 (1) The commission, upon finding that there has been a
30 violation of the Nebraska Political Accountability and Disclosure Act or
31 any rule or regulation promulgated thereunder, may issue an order

1 requiring the violator to do one or more of the following:

2 (a) Cease and desist from the violation;

3 (b) File any report, statement, or other information as required;

4 (c) Pay a civil penalty of not more than five thousand dollars for
5 each violation of the act, rule, or regulation; or

6 (d) Pay the costs of the hearing in a contested case if the violator
7 did not appear at the hearing personally or by counsel.

8 (2) Upon finding that there has been a violation of section 4 of
9 this act or of subdivision (1)(a)(vi) or (1)(b) or ~~subsection (2)~~ of
10 section 49-1480, the commission shall issue an order paying any person
11 who provided the commission information that resulted in the finding of
12 such violation a sum of fifty thousand dollars. Such payment shall be
13 contingent upon the commission recovering any civil penalty sought under
14 ~~subsection (3) of section 49-1480 or section 4 of this act.~~

15 **Sec. 4.** (1) Every person employed, retained, or authorized as a
16 consultant for a Chinese military company shall, before commencing any
17 influencing activity in Nebraska for such Chinese military company:

18 (a) File with the commission, on a form prescribed by the
19 commission, information that shall include at a minimum, the following:

20 (i) The name, permanent residence address, and office address of the
21 consultant;

22 (ii) The name and address of the Chinese military company
23 represented by such consultant;

24 (iii) A description of the business activity of the consultant;

25 (iv) An identification of the matters on which the consultant
26 expects to conduct influencing activity on behalf of such Chinese
27 military company;

28 (v) An affirmative acknowledgment by the consultant that such
29 consultant is influencing on behalf of, and thereby acting as an agent
30 of, a foreign adversary of the United States; and

31 (vi) The name and address of any official in the legislative or

1 executive branch, and of any members of any such official's staff or
2 immediate family, who are employed by the consultant or any person acting
3 on behalf of such consultant if such information is known or reasonably
4 should have been known to the consultant; and

5 (b) Disclose that such Chinese military company is a foreign
6 adversary of the United States.

7 (2) Any person who violates this section shall be subject to a civil
8 penalty of one hundred thousand dollars for each violation. For any
9 subsequent violation, the civil penalty shall be increased by one hundred
10 thousand dollars more than the previously assessed penalty, not to exceed
11 one million dollars per violation. All penalties collected under this
12 section shall be remitted to the State Treasurer for distribution in
13 accordance with Article VII, section 5, of the Constitution of Nebraska.

14 (3) For purposes of this section:

15 (a) Chinese military company has the same meaning as in section
16 1260H of Public Law 116-283, as such section existed on April 1, 2025,
17 and includes any subsidiary of a Chinese military company or any company
18 owned or controlled, in whole or in part, by a Chinese military company;
19 and

20 (b) Influencing activity includes, but is not limited to,
21 influencing by means of telephone, electronic mail, United States mail or
22 other mail delivery service, or in-person meetings.

23 **Sec. 5.** Original section 49-1401, Revised Statutes Cumulative
24 Supplement, 2024, and sections 49-1480 and 49-14,126, Revised Statutes
25 Supplement, 2025, are repealed.